

Missouri arrest record expungement guide

Before you proceed

Stop: the false-information ground always requires legal assistance before proceeding. Take this prepared packet and your own account of what happened to a lawyer. LegalEase does not decide that the arrest was based on false information or that probable cause is absent; the court must make those findings.

Arrange the three standard fingerprint cards described below first; they are required before filing, even though this packet can be prepared now.

Your section 610.122 packet

Prepared for Jordan Lee Example for the civil division of the Circuit Court in Jackson County, Missouri. Review every prefilled fact before filing. This packet concerns one arrest on 01/12/2023 by Kansas City Police Department.

CR145 is the petition. FI-05 is the confidential filing cover sheet, including all four official source pages and extra party pages as needed. No proposed order was requested. No fee waiver was requested. Keep these instructions separate from documents submitted to the court.

Confirm the selected basis and records

You selected the false-information branch: arrest based on false information; no probable cause now to believe you committed the offense; no charges will be pursued; no related suspended imposition of sentence; and no related civil action pending. Review each sworn statement in CR145.

Request the arrest or booking report and citation from the arresting agency. Obtain your fingerprint-based criminal-history record from the Missouri State Highway Patrol to build and check the agency list; confirm its current search fees. If charges were filed on the traffic ground, obtain certified dismissal, nolle-prosequi or acquittal records for every related charge from the court clerk. Obtain any docket and accurate record-holder names and addresses. Verify the county where the arrest occurred, arrest date, offense, citation, OCN if assigned, case number and court division. Stop and obtain legal assistance if your records contradict a required statement; this packet does not decide eligibility.

Obtain three standard fingerprint cards before filing. Call a local police department or sheriff's office to ask whether it takes applicant fingerprint impressions for court expungement, can provide three cards in one visit, the current cost for each card, whether cash is required, and what identification to bring. Start early. One card is filed with the court; one is sent by the clerk to the Missouri Criminal Record Repository with the summons; keep the third card. These cards differ from fingerprints for a Highway Patrol criminal-history search, and you do not have to buy a criminal record merely to obtain them. The packet does not fabricate the cards.

Review and execute

Compare every prefilled name, address, birth date, Social Security number, driver license, arrest fact, case and defendant against your records. FI-05 is confidential: submit it using the court's confidential filing procedure; do not attach an unredacted copy to public instructions. The case-type table identifies XG for expungement of criminal/arrest records.

Do not sign CR145 beforehand. Take identification and sign its sworn statement before the notary, judge or clerk authorized to administer the oath. Leave new case number, court ORI, court assignments, court findings, dates, file stamps, judicial and notarial signatures to their owners. The address under the participant signature is prefilled; the signature remains blank.

The attached records checklist is part of these instructions: arrest/citation; criminal history; case and disposition documents if charges were filed; complete record-holder/service addresses; fingerprint card; and financial records if requesting waiver.

File and provide notice

File CR145 with the clerk of the civil division of the circuit court for Jackson County, where the arrest occurred. Ask that clerk for the current filing fee, payment method, required copies, filing method and local submission requirements. Do not substitute a conviction-expungement form for this arrest route.

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CR145 directs the clerk to issue a copy to the prosecutor, send a copy of the petition and fingerprint card to the Missouri Criminal Record Repository, and notify the prosecutor and every named official, agency or entity of the hearing. Supply complete addresses, confirm issuance and notice procedures with the clerk, and retain filing/service receipts. No service or hearing is certified as completed in this packet.

The court sets a hearing no sooner than thirty days (30 days) after filing the petition and gives reasonable notice to every named official, agency or other entity. Attend the scheduled hearing and bring the underlying records and copies. Calendar the actual notice from the court; no hearing date or outcome is predicted.

Conditional order and fee waiver

Use CR143 only if the receiving court requests this proposed form and confirms it is appropriate. Its October 2016 text contains a no-prior-or-subsequent-convictions judicial finding that the April 2024 CR145 petition does not contain. Leave both judicial findings unchecked. Ask the court or counsel to resolve that wording before tendering the proposed order; do not infer a participant restriction, alter the court text or sign for the judge. The petition can be prepared without a requested proposed order.

If requesting GN10, review every income, expense, asset and debt, including spouse amounts when married. Review the GN10 reference to all attached FI-05 party sheets containing the supplied respondent addresses, then personally date and sign the penalty-of-perjury statement. GN10 has one page. The court decides whether to grant the requested fee waiver.

When self-help must stop

Obtain legal assistance if any civil action exists or is contemplated relating to the arrest or records, including an insurance or employment dispute; if commercial driver license status at arrest is uncertain; if the offense may involve intoxication-related traffic or boating; or if chapter 303 or moving-violation classification is unclear.

Stop for legal assistance if any related offense was not nolle prossed, dismissed or acquitted; if you received a suspended imposition of sentence for this arrest or a related offense; if the prosecutor or an agency protests expungement; or if anyone appeals under section 610.124.2.

Obtain legal assistance if no local agency will provide the fingerprint cards; if you are not a United States citizen or there may be an immigration consequence; or if you need to know whether destruction means a record can never be found. The false-information ground always requires legal assistance, even if no other stop applies.

After the decision

Obtain the signed order and confirm the clerk sends a copy to every named official, agency and other entity as CR143 directs. The order does not affect an entity that was not named as a defendant, so confirm the complete record-holder list before filing. Keep a certified copy and proof of delivery. Follow up with the named custodians and obtain an updated record to check implementation. Section 610.124 requires destruction of ordered records, or blacking out entries where destruction is not feasible because of permanent record books, removal from Missouri electronic files, and a central-repository request that the FBI expunge its files. No particular record outcome or timing is promised. If relief is denied or records remain, use the actual ruling and obtain legal assistance; do not assume records were erased automatically.